

PLANNING DISCLOSURE REPORT

18 Lucinda Avenue Wahroonga NSW 2076

Prepared 19 April 2026 · PlotDetect NSW Property Intelligence

ZONE	LOT AREA	LAND VALUE	CONSTRAINTS
R2	2,479 m ²	\$1,980,000	2

The following are NOT disclosed in a standard s10.7(2) certificate or title search — this report checks all of them:

▲ **Biodiversity Values Map (BDAR trigger)** · Riparian Land · Wetlands · Landslide Risk · Flood Planning Area · Bushfire Prone Land · Aircraft Noise (ANEF) · TOD Development Uplift · Additional Permitted Uses · DCP Setbacks (with clause citations) **1 constraint(s) identified at this property — see Risk Summary.**

This report covers	Not included — order separately
✓ Zone, height limit, FSR, minimum lot size — all 128 NSW councils ✓ Heritage listing: individual items and conservation areas (distinguished) ✓ Acid sulfate soils classification ✓ SEPP overlays (spatial footprint + statewide applicability) ✓ Environmental constraints: biodiversity, riparian, wetlands, landslide, flood ✓ Bushfire Prone Land (BFPL) + BAL category where available ✓ Aircraft Noise Exposure Forecast (ANEF) contour ✓ TOD precinct status (accelerated / core / deferred) ✓ Additional Permitted Uses (LEP Schedule 1) ✓ Development feasibility snapshot: secondary dwelling, dual occ, CDC eligibility, GFA headroom ✓ Strata and community title detection ✓ DCP setback controls with clause citations — Currently Inner West LGA only — email info@plotdetect.com.au to add your LGA ✓ Required consultant reports with indicative cost and lead time ✓ Nearby DA activity (200 m, 12 months) ✓ VG land value and 5-year trend	– Section 10.7 Planning Certificate (order from council) – Section 73 Sydney Water Certificate (allow 1–4 weeks; physical inspection possible if built over pressure main) – Title search (order via InfoTrack or equivalent) – Land tax clearance certificate (order via Revenue NSW) – Building certificate / OC gap check (order from council) – BYDA utility search (Before You Dig Australia — free, site-specific) – Strata inspection report (order via strata inspector) – Survey or identification report

1. Risk Summary

Constraint	Finding	Source
Heritage Listing	Clear	NSW Planning Portal
Acid Sulfate Soils	Class 5	NSW Planning Portal
LEP Key Site or Special Provision	Clear	NSW Planning Portal
Additional Permitted Uses (LEP Sch. 1)	None identified	PostGIS
Biodiversity Values Map (BDAR trigger)	Trigger risk — BDAR may apply	PostGIS
Riparian Land	Clear	NSW Planning Portal

Wetlands	Clear	PostGIS
Landslide Risk	Clear	PostGIS
Flood Planning Area	Clear	NSW Planning Portal
Foreshore Building Line	Clear	PostGIS
Classified Road Frontage (9 m setback)	Clear	PostGIS
Bushfire Prone Land (BAL assessment)	Clear	PostGIS
Northern Development Shadow Risk	Clear — a 9.5 m building on the northern adjacent lot would not significantly shadow this property on any Jun 21 scenario.	NSW LEP · shadow model

LEP Key Site or Special Provision — a planning designation under the Local Environmental Plan identifying the parcel for strategic development or applying special development controls. Unrelated to environmental sensitivity. **Biodiversity Values Map (BDAR trigger)** — whether the land is mapped under the Biodiversity Conservation Act 2016. A positive result triggers a Biodiversity Development Assessment Report (BDAR), typically \$15,000–\$50,000 and 4–12 months. Not disclosed in a s10.7 certificate. **Bushfire Prone Land (BFPL)** — mapped under the Rural Fires Act 1997. A positive result triggers AS 3959 construction requirements and a Bushfire Attack Level (BAL) assessment. **ANEF** — Aircraft Noise Exposure Forecast contour. Requires acoustic report for sensitive land uses. **TOD** — Transport-Oriented Development precinct under SEPP (Housing) 2021 Part 3A. Precinct type determines whether density uplift is in force (accelerated), approved (core), or pending (deferred).

Sources: Heritage, ASS, Key Site, SEPP overlays — NSW Planning Portal layerintersect (live query). Environmental and spatial overlays (biodiversity, riparian, wetlands, landslide, flood, bushfire, ANEF, TOD, APU) — PostGIS spatial database ingested from NSW Government ArcGIS services. Coverage: 128 NSW councils. None of these layers are disclosed in a standard s10.7(2) certificate or title search.

2. Settlement Risk Flags

Planning constraints relevant to pre-settlement due diligence. Based on LEP controls, valuation data and environmental overlays. Each finding requires professional planning advice before acting.

Question	Finding	Basis
Secondary dwelling (granny flat)	Likely permissible	Zone R2 + lot area 2,479 m ² ≥ 450 m ² minimum (SEPP Housing 2021, CI 53). Subject to DCP setback and height controls. Some councils have excluded dual occupancy CDC — confirm DA vs CDC pathway.
Torrens title subdivision	Potentially feasible	Lot area 2,479 m ² ≥ 2 × 930 m ² minimum. Subject to DA, DCP controls and Council assessment.
Complying Development Certificate (CDC)	Restricted — biodiversity sensitivity overlay	CDC eligibility affected by: biodiversity sensitivity overlay. Development will likely require a full DA.
Development potential (max permissible GFA)	744 m ²	Lot 2,479 m ² × FSR 0.3:1. Existing improvements reduce available headroom — compare against current dwelling footprint.
Land tax (investment, 2025 thresholds)	\$14,580/year	Land value \$1,980,000 exceeds 2025 threshold \$1,075,000. \$100 + 1.6% × \$905,000 = \$14,580/year. PPOR exempt. Investment property, trust, and company holdings are taxable. Verify current thresholds at revenue.nsw.gov.au .

3. Property & Development Rights

Control	Value	Reference
Zone	R2	Ku-ring-gai Local Environmental Plan 2015
Max Building Height	9.5 m	Clause 4.3
Floor Space Ratio	0.3	Clause 4.4
Min Lot Size (LEP)	930 m ²	Clause 4.1
Actual Lot Area	2,479 m ²	NSW Valuation Service
Land Value (excl. buildings)	\$1,980,000.0 (as at 1 July 2025) (\$799/m ²)	NSW Valuation Service

Maximum permissible GFA: 744 m² (lot area 2,479 m² × FSR 0.3:1). Actual achievable GFA subject to setbacks, height plane, and DCP controls.

Subdivision: Lot area (2,479 m²) is ≥ 2× minimum lot size (930 m²). Subdivision may be feasible subject to DA and detailed assessment.

Land Value Trend (excl. buildings — NSW Valuation Service):

Valuation Date	Land Value	Change
1 July 2021	\$1,450,000	—
1 July 2022	\$1,800,000	+\$350,000 (+24.1%)
1 July 2023	\$1,800,000	+\$0 (+0.0%)
1 July 2024	\$1,980,000	+\$180,000 (+10.0%)
1 July 2025	\$1,980,000	+\$0 (+0.0%)

Zone objectives (R2): Low Density Residential

Permitted and prohibited uses: see Ku-ring-gai Local Environmental Plan 2015 — Zone R2 land use table at <https://www.legislation.nsw.gov.au/#/view/EPI/2015/134>

4. DCP Development Controls — Setbacks

DCP setback data extracted for Inner West LGA (Marrickville, Leichhardt, Ashfield precincts). For other LGAs, obtain DCP controls directly from Council.

5. Environmental Constraints

Acid Sulfate Soils: Class 5

Subaqueous — applies to tidal wetlands/waterways. Works may still require management plan.

Biodiversity: Biodiversity

Biodiversity Sensitivity — any development application on this property will likely require a Biodiversity Development Assessment Report (BDAR) under the Biodiversity Conservation Act 2016. Cost: \$15,000–\$50,000+. Timeline impact: 4–12 months.

6. Heritage

No heritage listing identified via NSW Planning Portal.

7. State Environmental Planning Policy (SEPP) Overlays

SEPP / Instrument	Practical Implication
State Environmental Planning Policy (Sustainable Buildings) 2022	BASIX certificate required for new dwellings and renovations exceeding \$50,000.
State Environmental Planning Policy (Transport and Infrastructure) 2021	Check for infrastructure corridors or classified road setback requirements.

Statewide SEPP applicability — the following instruments apply across NSW regardless of property location and do not appear as spatial overlays:

Instrument	When it applies	Key implication
SEPP (Sustainable Buildings) 2022	All residential development	BASIX certificate required for new dwellings and alterations/additions exceeding \$50,000. Must demonstrate energy, water and thermal comfort targets.
SEPP (Housing) 2021	Residential zones — dual occ, secondary dwellings, complying dev	Enables secondary dwellings (450 m ² lot min), dual occupancy, and low-rise medium density housing as complying development in eligible zones. Sets minimum site standards that override some LEP controls.
SEPP (Transport and Infrastructure) 2021	Land adjoining classified roads and rail corridors	9 m minimum setback from classified road boundary for new dwellings. Noise and vibration assessment required for development near rail. No classified road frontage identified at this property.
SEPP (Resilience and Hazards) 2021	All land — flood, coastal hazard, contaminated land	Overrides local controls for land affected by natural hazards. Flood provisions apply statewide — council must have regard to flood planning levels. Contaminated land requires remediation before sensitive uses.

PropCode and standard s10.7 certificates list some statewide instruments but do not assess applicability to the specific property. The spatial SEPP overlays above (Section 7 table) identify instruments with a geographic footprint at this location.

8. Required Consultant Reports

Report	Trigger	Typical Cost	Typical Lead Time
BASIX Certificate	All new dwellings; alterations/additions > \$50,000	\$300–600	1–3 days
Biodiversity Development Assessment Report (BDAR)	Biodiversity Values Map trigger	\$15,000–50,000	4–12 months
Acid Sulfate Soils Management Plan	ASS Class Class 5 — earthworks or drainage works	\$3,000–15,000	2–6 weeks

Costs and lead times are indicative ranges only. Reports may be required as conditions of consent — buyer to confirm with a town planner before exchange if development is intended.

9. Nearby Development Activity (200m, 12 months)

No development applications lodged within 200m in the past 12 months. Low immediate construction disruption risk from neighbouring properties.

10. Disclosure Notes

s10.7 Planning Certificate: This report is NOT a substitute for a Section 10.7 Planning Certificate issued under the Environmental Planning and Assessment Act 1979. A s10.7(5) certificate from council is the authoritative statutory disclosure document for conveyancing. This report supplements — it does not replace — that certificate.

Environmental and spatial overlays: Biodiversity, riparian, wetlands, landslide, flood, bushfire prone land (BFPL), aircraft noise (ANEF), TOD precinct status, and Additional Permitted Uses data are sourced from PostGIS spatial overlays ingested from NSW Government ArcGIS services (128 NSW councils). None of these layers appear in a standard s10.7(2) certificate or title search. Data reflects the last ingestion date — accuracy is subject to NSW Government mapping precision. Verify with council for site-specific confirmation.

Title classification: Strata and community title identification sourced from NSW Planning Portal cadastral data. Company title properties return as Torrens in the land register and may not be automatically identified — confirm via title search for older inner Sydney apartment buildings.

DCP provisions: DCP setback controls are currently available for: Inner West LGA (Marrickville, Leichhardt, Ashfield precincts). For all other councils, Section 4 of this report is not populated — obtain DCP controls directly from council or via a town planning consultant.

Permitted and prohibited uses: Zone permitted and prohibited uses are derived from the NSW Planning Portal's LEP Land Use field (zone objectives text), which follows the standard instrument LEP format across all NSW councils. Uses are parsed from the authoritative portal response — not from a static lookup. Always verify the current LEP land use table via the legislation link provided.

Data sources and currency: NSW Planning Portal data: live query as at 19 April 2026. NSW Valuation Service land values: most recently published base date (shown in report). PostGIS spatial overlays: last ingestion from NSW Government ArcGIS services (ingestion date recorded per layer). DA activity: NSW ePlanning Portal API, past 12 months. No representation is made as to the completeness or accuracy of any data source.

Infrastructure contributions (S7.11 / S7.12): This report does not include infrastructure contribution liability estimates. Development applications for new dwellings or subdivision require a Council Section 7.11 (or 7.12) Contributions Plan levy. These are calculated per new lot or dwelling and vary by council area — typically \$10,000–\$50,000+ per dwelling in Greater Sydney, and higher in growth area councils. Contribution rates must be confirmed directly with the relevant council's contributions plan before any development feasibility assessment can be relied upon.

Easements and covenants on title: This report does not assess easements, covenants, restrictions on use, or positive covenants registered on the title. A stormwater easement, drainage reserve, or positive covenant for infrastructure maintenance can significantly affect the buildable area on a lot — in some cases more than any planning control. These are disclosed in the title search (DP plan diagram) and must be reviewed before any development feasibility assessment. Obtain a full title search and review the deposited plan before exchange.

Existing floor area and building footprint: Floor space ratio (FSR) headroom calculations in this report are based on the LEP maximum FSR applied to the lot area. They do not account for the gross floor area of any existing buildings on the lot. The actual development potential depends on existing GFA — which must be calculated from building plans, approved DAs, or a building surveyor's assessment. Do not use this report's FSR data as a standalone feasibility basis without first quantifying existing GFA.

Liability: This report provides planning intelligence for due diligence review only. It does not constitute planning, legal, environmental or conveyancing advice. Do not rely on this report as the sole basis for any decision to enter into a contract or proceed with a transaction. Independent professional advice should be obtained as appropriate for each matter. To the maximum extent permitted by law, the report provider accepts no liability for any loss or damage arising from reliance on this report.

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